
Appeal Decision

Site visit made on 11 August 2026

by **Paul Martinson BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

Appeal Ref: 6008659

Land North Of Willies Well, Crawcrook, Ryton NE41 8JL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Christopher Younger against the decision of Gateshead Metropolitan Borough Council.
 - The application Ref is DC/25/00113/FUL.
 - The development proposed is described as 'Change of use of land to a mixed use comprising agricultural and use as a holiday let (Sui Generis) including the construction of a shepherds hut and associated development'.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The appeal site lies close to the boundary of the Bradley Park Grade II Registered Park and Garden (the RPG). It also lies within the Bradley Park Conservation Area (the CA). I have therefore had regard to section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).
3. The development has already been carried out, and the appeal has been submitted retrospectively. Nonetheless, for the avoidance of any doubt I have based my assessment on the submitted plans.
4. I have taken the description of the development from the appeal form as it more accurately describes the appeal scheme.
5. I have taken into account the national decision-making (DM) policies contained within the new National Planning Policy Framework ('the Framework'), as published on 17 August 2026. Any reference to the Framework below is therefore a reference to this new version. Policy GB6 of the Framework sets out that development in the Green Belt is inappropriate unless it falls within one of the categories in Policy GB7. The list of exceptions set out in Policy GB7 are broadly consistent with those contained within the previous iteration of the Framework insofar as is relevant to this appeal.
6. In that regard, there is no dispute between the parties that the development would not meet any of those exceptions and would thus constitute inappropriate development in the Green Belt having regard to the Framework and the development plan policies. The main issues are therefore:

Main Issues

- the effect of the development upon the openness of the Green Belt;
- the effect of the development on the heritage assets including whether the proposal would preserve the setting of the RPG and whether the proposal would preserve or enhance the character or appearance of the CA; and
- whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations so as to amount to the very special circumstances required to justify the proposal.

Reasons

Openness

7. The Framework makes clear that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The government attaches great importance to Green Belts, the essential features of which are their openness and permanence. Policy CS19 of the Newcastle and Gateshead Core Strategy (2015) (the CS) sets out that Green Belts will be protected in accordance with national policy.
8. The appeal site lies within an open, rolling landscape of fields interspersed with trees and hedgerows. It lies to the south side of the B6317, near to the settlement of Crawcrook. The fields slope away from the road here and the visual openness of the Green Belt is clearly apparent in the landscape views from the gated entrance into the field that serves the appeal site.
9. The shepherds hut lies some distance into the field from the boundary with the B6317. It is positioned in a slight hollow that is at a lower level than that of the road and is enclosed by a fence with gravel adjacent. However, due to the open nature of its surroundings, the walls and roof of the shepherds hut are easily visible from the gate as an isolated manmade structure within this overtly pastoral setting. Views are more limited travelling further along the B6317 towards the settlement of Crawcrook, due to high roadside hedges and intervening field boundaries. However, the site can also be seen through the hedge from the Bradley Hall access road.
10. As such, the installation of the shepherds hut in an open position within this rural pastoral setting has eroded the openness of the Green Belt in both spatial and visual terms. Given the distinct lack of other development and aforementioned characteristics of the Green Belt here, the harm to openness is of a moderate level.
11. For the above reasons, I conclude that the proposal would result in a moderate level of harm to the openness of the Green Belt, contrary to CS Policy CS19 and the provisions of the Framework in this regard.

Heritage Assets

Special Interest and Significance

12. The RPG comprises the gardens, pleasure grounds and parkland that were likely laid out in the years following the erection of Bradley Hall in around 1760. The RPG occupies 42Ha to the north side of the A695 and generally abuts farmland to

the north, east and west. The eastern edge of the RPG is formed by woodland along the line of a small watercourse, Bradley Burn. This woodland abuts the edge of the field forming the appeal site.

13. Based on the limited information before me, insofar as it relates to the appeal, the significance of the RPG derives from it being an example of a country house with gardens and parkland forming a planned setting. Whilst I am not directed to any historic association, the open farmland that surrounds its perimeter forms part of its rural setting and contributes positively to its significance.
14. Located within the field adjacent to the RPG, the land around the appeal site forms part of this farmland setting and its undeveloped and pastoral character reinforces the significance of the RPG.
15. The CA comprises an attractive and rural landscape that extends over Bradley Park and the area covered by the RPG as well as the surrounding farmland. Its significance derives, in part, from the presence of Bradley Hall and Bradley Park and its relationship with the surrounding agricultural landscape and farms. The undeveloped and pastoral nature of the field comprising the appeal site makes an important and positive contribution to the CA in those respects. Being free of development also ensures that the nearby Bradley Hall and the gardens and parkland continue to be observed within the rural and agricultural landscape within which they were first conceived.
16. The landscape character of the field comprising the appeal site, lying east of Bradley Burn, is referenced in the CA Character Appraisal. The field lies within a landscape with characteristic steep mounds and hollows of glacial sands and gravels with the land to the west of Sled Lane rising steeply in a dome form. The dome referenced is indicative of the rolling character of the landscape described above. The Character Appraisal thus reinforces my above assessment.

Proposals and Effects

17. As set out in the above main issue, the shepherds hut is visible from the site entrance and parts of Bradley Hall access road as a somewhat isolated structure in an otherwise pastoral setting. Whilst the base of the structure is not prominent in these views, it nonetheless intrudes into the landscape in that respect, eroding the agricultural and open character of the field, and thus contributing negatively to the setting of the RPG. I appreciate that the structure is small compared to the expanse of the field, however, the erosion of the agricultural character that has occurred has incrementally eroded the ability to observe the RPG in its original farmland setting, to the detriment of its significance.
18. Whilst the landforms that contribute to the landscape character and the character and appearance of the CA remain visible, the shepherds hut has nonetheless introduced a man-made structure into what was previously an undeveloped attractive landscape. This has eroded the open and undeveloped character, and the significance of the CA has been diminished as a result.
19. For the above reasons, the development fails to preserve the setting of the RPG. It has also failed to preserve the character and appearance of the CA. This has adversely impacted on the significance of these heritage assets.

20. Mindful of the scale of the appeal scheme, the overall harm to heritage assets is low to moderate, but nonetheless carries considerable importance and weight as set out in the Framework.

Public Benefits and Balance

21. When considering the impact of proposed development on the significance of a designated heritage asset, the Framework sets out that great weight should be given to the asset's conservation. It makes clear that the more important the asset, the greater the weight should be. This is irrespective of the degree of harm that would occur.
22. Framework Policy HE6 sets out that where a development proposal would harm the significance of a designated heritage asset the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal. Important public benefits can include securing the long-term reuse of a vacant or underused listed building and enabling energy efficiency and low carbon heating measures to be employed.
23. There would be public benefits deriving from visitor spend contributing to the rural economy in this part of Gateshead. However, these benefits would be limited by the small-scale nature of the accommodation, being a single unit likely accommodating 2 guests at any one time. There would also be more limited, indirect benefits to local visitor attractions and other facilities such as pubs, restaurants and cafes, but, based on the evidence before me, these would be low, given the scale of the unit. For these reasons, the public benefits carry limited weight in favour of the appeal.
24. The limited public benefits arising from the proposal are not sufficient to outweigh the considerable importance and weight I attach to the low to moderate level of harm to the significance of the designated heritage assets.
25. Through harm to its setting, the development fails to preserve the significance of the RPG. It also fails to preserve the character and appearance of the CA. This would be contrary to the expectations of the Act in this regard.
26. The harmful impact would conflict with Policies CS15 of the CS and MSGP24 and MSGP25 of the Local Plan for Gateshead (2021) which, together and amongst other things, seek to ensure new development represents high quality design that is appropriate to its context, including the historic environment and local distinctiveness, and preserves heritage assets. There would also be conflict with the provisions within the Framework which seek to conserve and enhance heritage assets.

Planning Balance and Conclusion

27. The development is inappropriate development in the Green Belt and has resulted in a moderate level of harm to openness. It has also resulted in low to moderate harm to the setting of the RPG and the character and appearance of the CA. The Framework establishes that substantial weight should be given to any harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm are clearly outweighed by other considerations.
28. As set out in the main issue above, the development has likely resulted in a positive effect on the local rural economy, albeit limited by the small scale of the

development. Similarly, the proposal would likely provide low levels of support to nearby local businesses. However, given the substantial weight to be given to Green Belt harm, relative to the modest benefits of the scheme outlined above, the harm that has arisen is not clearly outweighed by the other considerations. Therefore, the very special circumstances necessary to justify the development do not exist.

29. I have considered all other matters raised but none outweigh the conclusions I have reached. For the reasons set out above, I dismiss the appeal.

Paul Martinson

INSPECTOR